IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT – IV

ITEM No. 5

New CA /231/ND/2022 IN CA(CAA)/51/ND/2021

IN THE MATTER OF:

ABK Consultants Pvt. Ltd. ... Applicant

And

Orior Developers And Infrastructure Pvt. Ltd.

Order under Section 230-232.

Order delivered on 05.07.2022

Coram:
MR. DHARMINDER SINGH
HON'BLE MEMBER (JUDICIAL)
DR. BINOD KUMAR SINHA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant : Mr. Kartikeya Goel, Adv

ORDER

The present application has been filed on behalf of the applicant-"ABK Consultants Private Limited" seeking that some typographical mistake erupted in the order dated 25.05.2022 in CA No. 185 of 2022, whereby the name of the applicant has been mentioned as "ABK Consul Tants Private Limited" whereas it should have been "ABK Consultants Private Limited". Further, the name of the "Orior Developers and Infrastructure Private Limited" which was not at all party in the present matter has also inadvertently in the title of the matter. In the body of the order, it has been mentioned that Resolution was not approved by the requisite majority of the meeting of the shareholders and it is matter that "approved by legal". Apparently, the said mistakes are typographical and clerical in nature. Hence, exercising of inherent powers conferred under Section 420 of Companies Act, 2013, read with Rule 154 of NCLT Rules, the said mistakes being typographical and clerical, stands corrected and accordingly, "ABK Consul Tants Private Limited" shall be read as "ABK Consultants Private Limited" and the body part shall be read as this application has been moved on behalf of the applicant-company for withdrawal of the scheme for amalgamation stating that the resolution was not approved by the requisite majority of the meeting of the shareholders. Accordingly, the present application stands partly allowed and order shall form part and parcel of the order dated 25.05.2022.

Resultantly, IA stands disposed of.

-Sd-

DR. BINOD KUMAR SINHA
MEMBER (TECHNICAL)

-Sd-

DHARMINDER SINGH
MEMBER (JUDICIAL)

MUKESH